



POLICE DEPARTMENT

August 7, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202301290 (Incident Date: February 14, 2023) regarding Police Officer Thor Stone, Tax No. 969378 (DADS No. 2024-30969) and Police Officer Pedro Herrera, Tax No. 960667 (DADS No. 2024-30967)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202301290, pertaining to Police Officers Thor Stone and Pedro Herrera. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against said members of the service would be detrimental to the Police Department's disciplinary process.

On February 14, 2023, Police Officers Stone and Herrera were assigned to the newly formed Bronx Robbery Task Force. On this date they were on patrol addressing quality-of-life conditions, neighborhood safety, and other routine patrol functions. According to the officers, they observed two individuals enter a black BMW and drive off at a high rate of speed. As the vehicle drove off, it accelerated and disobeyed several stop signs. Approximately 2-3 minutes later, the vehicle parked in front of a store and the driver exited and rushed inside. Moments later, the same individual exited the store, returned to the vehicle, and continued driving until he was pulled over by Police Officer Stone and Police Officer Herrera a few moments later.

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According to the officers, the race of the vehicle occupants was not a factor in initiating the vehicle stop. In fact, they explained that the car stop was based on their observations of the individuals' unlawful activity prior to the stop. There was no direct or circumstantial evidence establishing discriminatory intent on the part of Police Officer Stone or Police Officer Herrera¹ as the officers observed multiple traffic infractions, including speeding and disobeying several stop signs. Despite these initial observations, the officers continued to follow the vehicle, as it drove recklessly before arriving at a store, where the driver parked and exited. There was no dash cam video available that would contradict the officers' observations thus far. Furthermore, the driver was unavailable to be interviewed by CCRB and the passenger/complainant corroborated that the officers explained the reason for stopping them was based on the traffic infractions. According to the complainant, the officers also notified her of the location of said stop sign violations. The fact that the officers did not immediately stop the vehicle is of little significance, as there is no requirement for police officers to act the instant an infraction is observed. Police Officer Stone further explained that there was no significant hazard to pedestrians or other drivers at that time, so they continued to wait and see if the driver's behavior was related to any criminal activity. This decision also does not imply that the subsequent law enforcement action was motivated by the individuals' race.

There was also no evidence to suggest that Police Officers Stone's or Hererra's actions deviated from their fellow officers' customary practices, or that the circumstances of other stops they conducted in the past were suggestive of racially biased motives. There was no substantiated allegation of an improper stop against the officers in this case. Also, the fact that Police Officer Stone improperly questioned and frisked the individual and Police Officer Hererra improperly searched the car is not indicative of bias-based policing, since the stop was based on traffic violations committed by the driver.² In Police Officer Hererra's body worn camera footage at the 5:45 timestamp, he explains to the supervisor on scene, in sum and substance, that the driver was driving recklessly, "blew" two stop signs, parked in front of a store and "hopped" out. At the 6:39 timestamp he is heard similarly explaining to the driver, in sum and substance, that he can't be taking off like that, must come to a complete stop and cannot double park on the public street. The officers described the driver as a "gentleman," and compliant throughout the interaction and thus, exercised their discretion to not issue any summonses. None of these actions suggest bias-based policing in any way. Finally, both officers are active members of the Department with no similar IAB or EEO complaints. There are also no prior relevant CCRB substantiated allegations against them.

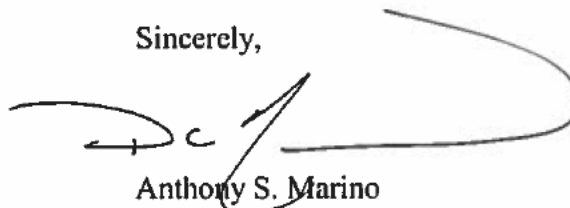
Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to impose no disciplinary action against Officers Stone and Herrera for the allegations of bias based policing. However, with regard to the improper

1. It should be noted that this interaction was not particularly noteworthy in either officers' enforcement activity as it did not result in an arrest or summons. Therefore, it is understandable that when the officers were questioned over a year after the incident, facts such as the location of the traffic infractions or the rate of speed the vehicle was traveling would have been difficult to recollect.

2. The Police Commissioner agrees that the questioning, frisk, and search were improper and intends to issue separate discipline.

question and frisk allegations, the Police Commissioner intends to direct the issuance of a Schedule "B" Command Discipline against Police Officer Stone and a Schedule "A" Command Discipline against Police Officer Herrera.

Sincerely,

A handwritten signature in black ink, appearing to read "Anthony S. Marino". The signature is fluid and cursive, with a large loop at the end.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

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ARVA RICE
INTERIM CHAIR

August 13, 2024

The Honorable Edward Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, New York 10038

Re: CCRB Case No. 202301290
Police Officer Thor Stone, Tax No. 969378;
Police Officer Pedro Herrera, Tax No. 960667

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated August 7, 2024 (hereinafter referred to as the “letter”) informing the Civilian Complaint Review Board (CCRB) of the Police Commissioner’s intent to impose no disciplinary action against Police Officers Thor Stone and Pedro Herrera for the substantiated allegations that they engaged in racially biased policing during a vehicle stop that they conducted on February 14, 2023.

As an initial matter, the letter’s assertion that “there was no direct or circumstantial evidence establishing discriminatory intent” because “the officers observed multiple traffic infractions, including speeding and disobeying several stop signs” (Letter at p. 2) is contrary to law. As state and federal courts have repeatedly recognized, the legal prohibition on selective enforcement of the law means that an officer cannot take law enforcement action based even in part on considerations such as race *even when they also have an objective legal basis—such as probable cause of a traffic violation—for taking such action. See, e.g., Floyd v. City of New York*, 959 F.Supp.2d 540, 666-67 (S.D.N.Y. 2013) (holding that “the [] position that racial profiling cannot exist provided that a stop is based on reasonable suspicion. . . is fundamentally inconsistent with the law of equal protection”); *Raza v. City of New York*, 998 F.Supp.2d 70, 79 (E.D.N.Y. 2013) (holding that “the existence of [] reasonable suspicion or probable cause does not automatically defeat” a religious profiling claim and that “[e]ven if Defendants’ investigations of Plaintiffs were supported by criminal predication, if those investigations were improperly influenced by Plaintiffs’ religion, they may be unconstitutional”); *PBA v. City of N.Y.*, 142 A.D.3d 53, 66-67 (1st Dep’t 2016) (“To be sure, police conduct that may be lawful for search and seizure purposes may nonetheless violate equal protection principles” where “the officer is motivated by an intent to discriminate”). Thus, the fact that PO Stone’s and PO Herrera’s stop of the complainants’ vehicle may have been supported by probable cause of one or more traffic infractions does not preclude a finding that the stop and/or the other law enforcement actions taken by the officers during this incident (e.g., the questioning and frisk of the driver and search of the vehicle) were also racially biased.

In fact, there are numerous pieces of circumstantial evidence of the officers' racially discriminatory intent in the case record and cited in the CCRB investigation's closing report which the letter either discounts or ignores. First, the falsity of an officer's non-discriminatory explanations for their law enforcement actions can support a finding that the officer was attempting to conceal a racially discriminatory motive. *See Turkmen v. Hasty*, 789 F.3d 218, 256-57 (2d Cir. 2015), *rev'd on other grounds*, 137 S.Ct. 1843 (2017); *Rodriguez v. Barr*, 943 F.3d 134, 143 (2d Cir. 2019). However, the letter fails to mention that Officer Stone's explanation for searching the complainants' vehicle – that the male complainant consented to the search – was clearly false. Moreover, while the letter cites Officer Stone's proffered explanation for following the complainants' vehicle for an extended period of time after observing the traffic violations before initiating the stop – that the officers “waited to see if the driver's behavior was related to any criminal activity” – as a basis for concluding that the stop was not racially motivated (Letter at p.2), the letter ignores that the officers ultimately made the vehicle stop for the observed traffic infractions only and without any information about related criminal activity, thereby rendering Officer Stone's explanation implausible.

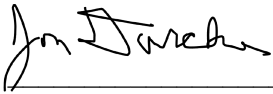
The letter also contends that the illegality of PO Stone's questioning and frisking of the driver and search of the vehicle were “not indicative of bias-based policing, since the stop was based on traffic violations committed by the driver” (Letter at 2.). However, this argument is a red herring in two respects. First, the NYPD's Policy Prohibiting Racial Profiling and Bias-Based Policing prohibits not only racially motivated stops, but *any* racially motivated law enforcement actions, including questioning, frisks, and searches (*see* NYPD Admin. Guide § 304-17 ¶¶ 2-4), and the lack of founded and reasonable suspicion for PO Stone's questioning and frisk of the driver and lack of probable cause for the search of the vehicle support an inference that those law enforcement actions were racially motivated. *See Rodriguez v. Barr*, 943 F.3d at 143; *Millan-Hernandez v. Barr*, 965 F.3d 140, 148 (2d Cir. 2020); *Hassan v. City of N.Y.*, 804 F.3d 277, 296 n.7 (3d Cir. 2015); *Marshall v. Columbia Lea Reg'l Hosp.*, 345 F.3d 1157, 1169 (10th Cir. 2003); *Anderson v. Cornejo*, 284 F.Supp.2d 1008, 1055 (N.D. Ill. 2003). Second, the fact that PO Stone's questioning, frisk and vehicle search were unrelated to the traffic violations upon which the vehicle stop was purportedly based is itself circumstantial evidence that the stop was pretextual and racially motivated. *See Commonwealth v. Long*, 152 N.E.3d 725, 740 n.10 (Mass. 2020).

Finally, the letter's assertion that there was “no evidence to suggest that . . . the circumstances of other stops [Officers Stone and Herrera] conducted in the past were suggestive of racially biased motives” (Letter at 2) is contradicted by the CCRB's analyses of NYPD data on Officer Stone's and Officer Herrera's vehicle stop activity during the year preceding the incident in question, which are summarized in the CCRB investigation's closing report and the data analysis memorandum attached thereto. These analyses show that (i) Officer Stone and Officer Herrera stopped a disproportionately high number of Black drivers as compared to the Black population of the geographic areas where their stops occurred, (ii) the percentage of Officer Herrera's stops that involved Black drivers was notably higher than it was for the traffic stops conducted by other NYPD officers patrolling in the same geographic areas and same times of day and days of the week as Officer Herrera; and (iii) PO Stone searched the vehicles of one out of every six Black drivers he stopped but did not search the vehicle of *any* of the drivers of other races whom he stopped (CCRB Investigation Closing Report at 18-19). Such racially disparate patterns in an officer's prior enforcement activity are widely recognized as strong circumstantial evidence of the officer's racially discriminatory motives. *See, e.g., Anderson v. Cornejo*, 284 F.Supp.2d at 1050; *Johnson v. Holmes*, 782 Fed.Appx. 269, 281-82

(4th Cir. 2019); *Commonwealth v. Long*, 152 N.E.3d at 739-40; *Ballew v. City of Pasadena*, 642 F.Supp.3d 1146, 1170 (C.D. Cal. 2022).

In sum, as set forth in the CCRB investigation's closing report in this case, the totality of the relevant circumstantial evidence in the case record establishes that one or more of PO Stone's and PO Herrera's law enforcement actions during the February 14, 2023 incident were more likely than not motivated at least in part by the race of the complainants. Accordingly, the CCRB believes that the charges and specifications recommended for the substantiated racially-biased policing allegations against Officers Stone and Herrera are appropriate and consistent with the goals of the NYPD's Disciplinary Matrix and asks that the Department serve these charges and specifications on Officer Stone and Officer Herrera.

Respectfully submitted,

A handwritten signature in black ink, appearing to read "Jon Darche", written over a horizontal line.

Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

August 14, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

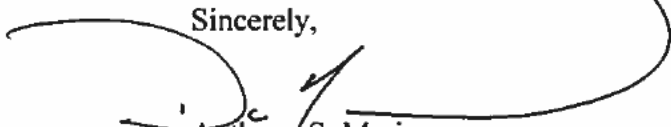
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Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated August 13, 2024, regarding the CCRB case involving Police Officers Thor Stone and Pedro Herrera and nevertheless maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of said Officers, for the reasons expressed in my August 7, 2024 letter.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, directs the issuance of a Schedule "B" Command Discipline against Police Officer Stone with the forfeiture of three (3) vacation days for the question and frisk allegations. The Police Commissioner also directs the issuance of a Schedule "A" Command Discipline against Police Officer Herrera with the forfeiture of three (3) vacation days for the vehicle search allegations. Furthermore, no disciplinary action will be imposed for both Officers Stone and Herrera for the allegations of bias-based policing.

Sincerely,


Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office